

ARCHIVED CONTENT

Information released online from January 20, 2009 to January 20, 2017.

NOTE: Content in this archive site is **NOT UPDATED**, and links may not function. External links to other Internet sites should not be construed as an endorsement of the views contained therein.

[Go to the current State.gov website for up-to-date information. \(http://www.state.gov/\)](http://www.state.gov/)

U.S. Department of State Diplomacy in Action

Comoros

Country Reports on Human Rights Practices

Bureau of Democracy, Human Rights and Labor

1999

February 23, 2000

The Federal Islamic Republic of the Comoros is ruled by Colonel Assoumani Azali, who took power in a coup in April. The country consists of three islands (Grande Comore, Anjouan, and Moheli) and claims a fourth, Mayotte, which is governed by France. Comoros has been prone to coups and political insurrection since independence in 1975. On April 29 and 30, army commander Colonel Azali staged a bloodless coup and overthrew President Tadjiddine Ben Said Massounde, the Interim President who had held office since the death of democratically elected President Mohamed Taki Abdoukarim in November 1998. Colonel Azali justified the coup and his subsequent self-designation as president by stating that the previous government was unable to maintain law and order on Grande Comore or to solve the Anjouan secession crisis. Colonel Azali said that he would step down on April 14, 2000 and relinquish power to a democratically elected president. However, his vow was conditioned on Anjouan's return to the republic and participation in the elections. On May 6, Azali decreed a new Constitution that gives him both executive and legislative powers. While the Cabinet is predominantly civilian, three-quarters of the regime's directorate, where the real power is thought to reside, is composed of members of the military. In December in response to international criticism, Azali appointed a civilian prime minister, Bianrifi Tarmidi; however, Azali remains the Head of State and army commander in chief. The judiciary was the only federal institution to survive the coup intact. Its nominal independence was not tested during the year; however, in the past, both the executive and other elites have influenced the outcome of court cases.

The Anjouan secession crisis entered its third year. In April Anjouanais representatives were the only parties who refused to sign a reunification accord brokered by the Organization for African Unity's (OAU), which was negotiated in Antananarivo, Madagascar. The Anjouanais leadership had not signed the accords by year's end. In August legislative elections were held on Anjouan, in which the faction led by Lieutenant Colonel Said Abeid won an overwhelming majority. Opposition parties alleged that most of their candidates were disqualified unfairly. Several opposition leaders were expelled to Mayotte in September, then imprisoned when they were sent back to Anjouan by French authorities. The OAU observer force departed the country after the coup. The OAU General Assembly and Council of Ministers both have criticized the coup, and the General Assembly threatened sanctions if constitutional government was not restored before the next OAU summit.

The Comorian Defense Force (FCD) and the gendarmerie are responsible for internal security and are under Azali's direct control. Security forces committed some human rights abuses.

The economy of this extremely poor country is dominated by agriculture. Revenues from the main crops--vanilla, essence of ylang-ylang, and cloves--continue to fall while the population of 547,600 has been growing at a rate of 2.7 percent annually. Per capita income was approximately \$400 per year in 1997. The national accounts have not been updated since 1998. The country depends heavily on foreign assistance from the European Union and Arab countries, including Bahrain, Kuwait, Qatar, Saudi Arabia, and the United Arab Emirates.

The human rights situation remained poor, and worsened in several areas. Citizens do not have the right to change their government. Police regularly threatened Christians, prison conditions remain poor, and police sometimes arbitrarily arrested and detained persons. There were some infringements on freedom of the press and academic freedom. The military regime limits freedom of religion. Societal discrimination against women and Christians continued to be serious problems. There were some instances of forced child labor. Prior to the coup, nongovernmental political factions harassed and beat Anjouanais residents throughout Grande Comore after Anjouanais representatives refused to sign the Antananarivo accords in April.

On at least one occasion, quasi-police authorities known as embargoes on Anjouan beat and detained Christians. Political violence on Anjouan resulted in a number of deaths.

RESPECT FOR HUMAN RIGHTS

Section 1 Respect for the Integrity of the Person, Including Freedom From:

a. Political and Other Extrajudicial Killing

There were no reports of political or extrajudicial killings by the authorities on Grande Comore.

Between May 11 and 13, 1998, police clashed with protestors on Grand Comore over the May 6 government closure of the opposition party's Radio Tropique. Police seriously injured several persons, but the only death reportedly was due to a traffic accident caused by the fighting. No police officers were held responsible for their actions during the protests.

In addition to the police and the military, there are many groups throughout Anjouan that are armed, including paramilitary forces, militias, and civilians. Battles between rival militias resulted in about a dozen deaths.

In May a Paris, France court acquitted Bob Denard, a 70-year-old mercenary, of charges that he killed President Ahmed Abdallah in 1989.

b. Disappearance

There were no reports of politically motivated disappearances.

c. Torture and Other Cruel, Inhuman, or Degrading Treatment or Punishment

The new Constitution declared by Colonel Azali does not specifically prohibit torture or other cruel, inhuman, or degrading treatment or punishment; however, while there were no reports of security force brutality, police regularly threatened Christians (see Section 2.c.).

In April just prior to the coup, nongovernmental political factions and gangs of youths harassed and beat hundreds of Anjouanais on the main island of Grand Comore after representatives from Anjouan refused to sign a reunification accord.

In April embargoes arrested, beat, and detained three local Christians (see Section 2.c.). Prison conditions continued to be poor. A lack of proper sanitation, overcrowding, inadequate medical facilities, and poor diet are common problems. The military regime has not taken action to remedy these problems.

The military regime permits prison visit by independent monitors; however, no such visits occurred during the year.

d. Arbitrary Arrest, Detention, or Exile

The Constitution does not prohibit arbitrary arrest and detention specifically, and there were instances in which authorities arbitrarily arrested and detained citizens. Three opposition politicians, including former interim Prime Minister Abbas Djoussouf, were arrested and detained briefly following minor street demonstrations in September. In September the courts dismissed charges against all three. In October authorities arrested a journalist for writing an article that suggested that there was discord within the army over Azali's rule (see Section 2.a.).

In April embargoes on Anjouan arrested, beat, and detained for a day three local Christians (see Sections 1.c. and 2.c.). Usually the authorities hold those detained for a few days and often attempt to convert them forcibly to Islam. This incident was not investigated, nor was any action taken against the persons responsible. Anjouan authorities also detained political opponents. In September secessionist authorities on Anjouan exiled a score of opponents to Mayotte, then imprisoned several of the group's leaders when they were sent back to Anjouan by French authorities. The opponents were released from prison in early October, and no charges were filed against them.

The Constitution does not prohibit forced exile, but the military regime did not use it.

e. Denial of Fair Public Trial

The Constitution provides for an independent judiciary enforced by the Head of State; however, while the nominal independence of the judiciary was not tested during the year, in the past, the executive and other elites have exercised influence over court cases. The Head of State names magistrates by decree.

The High Council, made up of four members appointed by the President, three members elected by the Federal Assembly, and a member of each island council, also serves as the High Court of the Republic and rules on cases of constitutional law. The May Constitution does not provide for equality before the law of all citizens. It does not mention the right to counsel. Trials are open to the public except for limited exceptions defined by law. The legal system incorporates Islamic law as well as French legal codes. There are very few lawyers in the country, making it difficult to obtain legal representation. The military regime does not provide legal counsel to the accused. Most disputes are presented to village elders for possible resolution before being taken to court.

There were no reports of political prisoners.

f. Arbitrary Interference with Privacy, Family, Home, or Correspondence

There were no known cases of arbitrary interference with privacy or correspondence. Former President Taki's bans on alcohol and immodest dress no longer remained in effect. Alcohol can be imported and sold with a permit from the military regime.

Section 2 Respect for Civil Liberties, Including:

a. Freedom of Speech and Press

The Constitution does not provide specifically for freedom of the press, and on at least one occasion authorities infringed on this right. In early October, a freelance correspondent with Agence France Presse, Aboubacar Mchangama, was arrested and detained for reporting about unease within the army between supporters and opponents of Colonel Azali. He reportedly was released on bail on October 21. Nevertheless, small independent newspapers exist side-by-side with the semiofficial weekly Al-Watwan, and some of the independent newspapers criticized the regime freely.

The regime-controlled radio station, Radio Comoros, was the only national radio station until the opposition radio station Radio Tropique resumed operations in June. In addition there are at least 10 regional and local stations, some of which are openly critical of the regime. Residents also receive broadcasts from Mayotte Radio, as well as from French television, without government interference. A national television station is under construction with assistance from the Chinese Government. There are several private local television stations, and satellite antennas are popular. Amateur radio licenses have been issued without hindrance in the past.

Foreign newspapers are available, as are books from abroad. Internet service was introduced by the Taki Government in September 1998.

In August an independent radio station on Anjouan, Radio Ushababi, which was opposed to the independence movement, reportedly was forced to cease broadcasting after being harassed by police and threatened on several occasions by a group of separatist militiamen.

There is no university, but secondary students and teachers speak freely and criticize the regime openly. Public schools no longer are closed on Grand Comore. In order to pressure the Anjouan authorities into signing the Antananarivo accords, the Azali military regime prevented Anjouanais students who traveled to Grande Comore from taking their baccalaureate exams.

b. Freedom of Peaceful Assembly and Association

The Constitution does not provide specifically for freedom of assembly and association, but the regime generally respected these rights in practice.

c. Freedom of Religion

The Constitution does not prohibit discrimination based on religion or religious belief specifically, and authorities infringed on this right. An overwhelming majority of the population is Sunni Muslim. Authorities restricted the right of Christians to practice their faith. Police regularly threatened and sometimes detained practicing Christians. Usually, the authorities hold those detained for a few days and often attempt to convert them to Islam forcibly. In October two citizens were arrested, tried, and convicted of "anti-Islamic activity" in part because they possessed Christian books and audiovisual material. One of the citizens was sentenced to 18 months in prison, while the other was sentenced to 4 months. Local government officials attempted to force Christians to attend services at mosques against their will.

There are two Roman Catholic churches and one Protestant church. However, prior to the April coup, the former military regime restricted the use of these three churches to noncitizens. There was no information available as to whether the new military regime continued this practice. Many Christians practice their faith in private residences. The regime permits Christian missionaries to work in local hospitals and schools, but does not permit them to proselytize.

The Ulamas council, which had advised the President, Prime Minister, President of the Federal Assembly, the Council of Isles, and the island governors on whether bills, ordinances, decrees, and laws are in conformity with the principles of Islam, no longer exists.

In April embargoes on Anjouan arrested, beat, and detained for a day three local Christians. Some community authorities on Anjouan banned Christians from attending any community events and banned Christian burials in a local cemetery.

d. Freedom of Movement Within the Country, Foreign Travel, Emigration, and Repatriation

The Constitution does not specifically provide for these rights; however, the military regime generally respected them in practice. There is no longer a curfew in effect. Air links that had been severed since December 1998 between Grande Comore and Anjouan were restored in April. Passports were again available.

The regime has not formulated a policy regarding refugees, asylees, or first asylum.

Section 3 Respect for Political Rights: The Right of Citizens to Change their Government

According to the Constitution's preamble and in practice, citizens do not have the right to change their government. The Constitution states that national sovereignty belongs to the nation's citizens who may exercise it through referendums; however, the regime had not scheduled a referendum by year's end.

According to the Constitution, the Head of State--self-appointed President Azali--has legislative power, which he exercises through ordinances, and executive power, which he exercises through decrees. On April 30, Colonel Azali said that he would step down on April 14, 2000, and relinquish power to a democratically elected president if Anjouan returns to the Republic and participates in the elections.

There are no bans in effect on political parties, which continue openly to criticize the regime without penalty.

Village chiefs and Muslim religious leaders tend to dominate local politics. Traditional social, religious, and economic institutions also affect the country's political life in important ways.

Although women have the right to vote and to run for office, they are underrepresented severely in national politics. At least two women hold senior government positions: one is the Minister for National Education and the other holds the second highest position on the State Council, which advises the Cabinet.

Section 4 Governmental Attitude Regarding International and Nongovernmental Investigation of Alleged Violations of Human Rights

The military regime did not prevent the operation of human rights nongovernmental organizations (NGO's), and a number of NGO's operated in the country. However, the Comoros Human Rights Association, established in 1990, was on the verge of disintegration due to a lack of funds.

The military regime cooperated with international NGO's, and a few international NGO's operated in the country.

Section 5 Discrimination Based on Race, Sex, Religion, Disability, Language, or Social Status

The Constitution does not prohibit discrimination based on these factors specifically, but only states that the judiciary is the guardian of individual liberties. Local communities discriminate against and harass Christians, and Islamic fundamentalism is growing in popularity as more students return to the country after pursuing Islamic studies abroad.

Women

Violence against women occurs, but medical authorities, the police, and women's groups believe that it is rare. In theory a woman could seek protection through the courts in the case of violence, but in fact the problem is addressed most often within the extended family or at the village level.

Men have the dominant role in society. A matriarchal African tradition affords women some rights, especially in terms of landholding. Societal discrimination against women was most apparent in rural areas where women have onerous farming and child-rearing duties, with fewer opportunities for education and wage employment. In contrast an improvement in the status of women was most evident in the major towns, where growing numbers of women are in the labor force and generally earn wages comparable to those of men engaged in similar work; however, few women hold positions of responsibility in business. While legal discrimination exists in some areas, in general inheritance and property rights do not disfavor women. For example, the house that the father of the bride traditionally provides to the couple at the time of their marriage remains her property in the event of divorce.

Children

The regime has not commented on the protection of children's rights and welfare, nor has it taken any action to protect or promote children's welfare. Population pressure and poverty force some families to place their children in the homes of others. These children, often as young as 7 years of age, typically work long hours as domestic servants in exchange for food and shelter (see Section 6.c.). Legal provisions that address the rights and welfare of children are not enforced because of a lack of inspectors.

Female genital mutilation, which is widely condemned by international health experts as damaging to both physical and psychological health, generally is not practiced. Child abuse appears to be rare.

People with Disabilities

There is no evidence of widespread discrimination against the disabled in the provision of education or other services. No legislation is in force concerning accessibility to public buildings or services for persons with disabilities.

Religious Minorities

There is widespread societal discrimination against Christians in all sectors of life. Attempts have been made to isolate Christians from village life. Christians face insults and threats of violence from members of their communities. Christians have been harassed by mobs in front of mosques and summoned for questioning by religious authorities. In some instances, families forced Christian members out of their homes or threatened them with a loss of financial support. Some Christians have had their Bibles taken by family members. Local government officials, religious authorities, and family members have attempted to force Christians to attend services at mosques against their will.

Community members and authorities in Lingoni, Anjouan, banned Christians from attending any community events, and in Mremeni, Anjouan, they banned Christian burials in the local cemetery.

Section 6 Worker Rights

a. The Right of Association

The Constitution does not provide for the right to unionize and strike, but these rights are practiced freely. Farming on small land holdings, subsistence fishing, and petty commerce make up the daily activity of most of the population. The wage labor force is small, and numbers less than 7,000 including government employees, and less than 2,000 excluding them. Teachers, civil servants, and dockworkers are unionized. Unions are independent of the regime. Teachers and hospital workers strike intermittently, mostly because they often are not paid for months at a time. There are no laws protecting strikers from retribution, but there were no known instances of retribution.

There are no restrictions on unions joining federations or affiliating with international bodies.

b. The Right to Organize and Bargain Collectively

Unions have the right to bargain collectively, and strikes are legal. Wages are set by employers in the small private sector and by the Government, especially the Ministries of Finance and Labor, in the larger public sector. The Labor Code, which is enforced only loosely, does not include a system for resolving labor disputes, and it does not prohibit antiunion discrimination by employers.

There are no export processing zones.

c. Prohibition of Forced or Compulsory Labor

The Constitution does not mention forced or compulsory labor, but it generally is not practiced; however, some families place their children in the homes of others where they work long hours in exchange for food or shelter (see Section 5).

d. Status of Child Labor Practices and Minimum Age for Employment

The Labor Code defines the minimum age for employment as 15 years of age. The Ministry of Labor has few resources to enforce this provision, but, except for domestic work, child labor is not a problem due to the general lack of wage employment opportunities. There were some instances of forced or bonded labor by children (see Section 5 and 6.c.). Children generally help with the work of their families in the subsistence farming and fishing sectors (see Section 5).

e. Acceptable Conditions of Work

There is no minimum wage.

Previous governments periodically have reminded employers to respect the Labor Code, which specifies 1 day off per week plus 1 month of paid vacation per year, but the regime has not set a standard workweek.

There are no safety or health standards for the minuscule manufacturing sector.

Trafficking in Persons

The law does not prohibit trafficking in persons; however, there were no reports that persons were trafficked in, to, or from the country.

[end of document]

The Office of Website Management, Bureau of Public Affairs, manages this site as a portal for information from the U.S. State Department.

External links to other Internet sites should not be construed as an endorsement of the views or privacy policies contained therein.

Note: documents in Portable Document Format (PDF) require Adobe Acrobat Reader 5.0 or higher to view, [download Adobe Acrobat Reader](http://get.adobe.com/reader/) (<http://get.adobe.com/reader/>).